

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #07	CCRB Case #: 202306399	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 07/11/2023 6:00 PM	Location of Incident: 6 Victory Boulevard (Lyon's Pool Recreation Center)	18 Mo. SOL 1/11/2025	Precinct: 120
Date/Time CV Reported Thu, 07/13/2023 9:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/13/2023 9:57 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Nicholas Bocchino	25780	971835	120 PCT
2. SGT Thomas Garguilo	04371	949006	120 PCT
3. PO Katelyn Serrano	01011	973163	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Nicholas Bocchino	Force: Police Officer Nicholas Bocchino used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . SGT Thomas Garguilo	Force: Sergeant Thomas Garguilo used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Katelyn Serrano	Force: Police Officer Katelyn Serrano used physical force against § 87(2)(b)	C . Within NYPD Guidelines

Case Summary

On July 13, 2023, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of his § 87(2)(b) daughter, § 87(2)(b).

At approximately 6:00 p.m. on July 11, 2023, § 87(2)(b) went to Lyon's Pool Recreation Center, located at 6 Victory Boulevard, Staten Island, after hearing that a friend of hers was engaged in a physical altercation. Upon arriving at the location, the building had been closed and police officers were directing the large crowd outside of the building to disperse. § 87(2)(b) attempted to walk past the officers to find her sister, at which point Police Officers Nicholas Bocchino and Katelyn Serrano, and Sergeant Thomas Garguilo of the 120th Precinct grabbed § 87(2)(b) and pushed her against a fence (**Allegations A through C: Physical Force – Within NYPD Guidelines**), then placed her under arrest for § 87(2)(b). § 87(2)(b) was removed to the 120th Precinct stationhouse. No further arrests or summons were issued during the incident.

Thirty-two body-worn camera (BWC) videos yielded from the incident; the BWC videos of Sgt. Wilson Cordero, PO Mariaangela Graffagnino, PO Joseph Casale, PO Robert Orlando, and Sgt. Thomas Garguilo will be analyzed in this report (Board Reviews 03 through 07).

Findings and Recommendations

Allegation (A) Force: Police Officer Nicholas Bocchino used physical force against § 87(2)(b)

Allegation (B) Force: Sergeant Thomas Garguilo used physical force against § 87(2)(b) § 87(2)(b)

Allegation (C) Force: Police Officer Katelyn Serrano used physical force against § 87(2)(b)

§ 87(2)(b) stated that at approximately 5:30 p.m. on July 11, 2023, she received a call from a friend saying that their mutual friend, § 87(2)(b) had gotten into a fight at Lyon's Pool Recreation Center, located at 6 Victory Boulevard, Staten Island. § 87(2)(b) and her older sister, § 87(2)(b) went to the pool to check on § 87(2)(b). Upon arriving at the exterior pedestrian overpass that leads to Lyon's Pool Recreation Center, § 87(2)(b) observed § 87(2)(b) and eight other friends standing in the middle of the overpass with approximately eight police officers. § 87(2)(b) and § 87(2)(b) approached § 87(2)(b) and the officers immediately told § 87(2)(b), § 87(2)(b), and § 87(2)(b) and his friends, that everyone needed to immediately leave the location. Neither § 87(2)(b), § 87(2)(b), § 87(2)(b) nor his friends proceeded to leave because they were waiting for § 87(2)(b) to get his shoes back, which had been lost during the initial fight. A group of officers, including PO Bocchino, PO Serrano, and Sgt. Garguilo began walking towards § 87(2)(b) her sister, § 87(2)(b) and his friends while telling them to "back up." § 87(2)(b) stated that the group began to comply and started walking backward, when § 87(2)(b) observed her younger sister, § 87(2)(b) § 87(2)(b) standing behind the police on the other side of the overpass. § 87(2)(b) § 87(2)(b) attempted to walk past the officers and toward her younger sister when an officer approached § 87(2)(b) and told her again to "back up." § 87(2)(b) § 87(2)(b) told the officer she was attempting to get her sister when Sgt. Garguilo approached and said, "Arrest her." PO Bocchino, PO Serrano, and Sgt. Garguilo surrounded § 87(2)(b) § 87(2)(b) and pushed her front body into a fence that was behind her, then placed her into handcuffs. § 87(2)(b) was removed to the 120th Precinct Stationhouse. § 87(2)(b)

§ 87(2)(b) denied that she was ever informed why she had been arrested and stated that to her knowledge, no other individuals were arrested during the incident (Board Review 01).

An incident report that was prepared by New York City Department of Parks and Recreation staff at Lyon's Pool Recreation Center states that an unknown male juvenile was acting disorderly towards a group of young females inside the pool and was then escorted out of the building due to his behavior. The male individual was joined outside the building by a group of friends and family who had entered the pool with him initially, with the intent to assault the female individual he had initially gotten into the altercation with when she left the building. The female individual was escorted outside by the NYPD and left the location safely. Additional NYPD officers arrived at the location to defuse the disorderly group, which was the male individual and his friends, whom were still outside the building. A second group of patrons came down the train ramp near the exterior of the building and began fighting with the male individual and his group. An unnamed NYPD officer was punched in the face, triggering a response from the NYPD. The pool was immediately shut down and all patrons were forced to leave. The group that initiated the fight fled to the overpass, where an unknown individual from said group was arrested on unknown charges. All groups then dispersed without further incident (Board Review 02).

§ 87(2)(b) s juvenile arrest report states that she was arrested by PO Serrano for

§ 87(2)(b), § 87(2)(a) FCT § 380.1

BWC videos from Sgt. Wilson Cordero, PO Mariaangela Graffagnino, PO Joseph Casale, PO Robert Orlando, and Sgt. Thomas Garguilo capture a large disorderly group of approximately 20 individuals, ranging from § 87(2)(b) to § 87(2)(b), arguing with approximately 15 NYPD officers regarding leaving the vicinity of Lyon's Pool Recreation Center (Board Reviews 03 through 07). Beginning at the 09:21 time stamp in Sgt. Cordero's BWC video (Board Review 03), Sgt. Cordero walks up the overpass to speak with PO Marina Fotey who is attempting to keep a group of approximately 15 individuals from walking back down the overpass and towards the other group of juveniles at the bottom of the overpass. Sgt. Cordero, PO Serrano, PO Bocchino, PO Fotey, Sgt. Garguilo, and approximately eight additional officers spend approximately ten minutes attempting to get the crowd to disperse and leave the location, walking in a line to herd the crowd in the opposite direction of the pool and off of the overpass. At the 18:19 time stamp, while the officers are still attempting to get the crowd to leave, § 87(2)(b) approaches Sgt. Garguilo and attempts to walk past him. Sgt. Garguilo places an arm in front of § 87(2)(b) and tells her she can't pass. § 87(2)(b) responds that she's "trying to get her sister." Sgt. Cordero, PO Serrano, PO Bocchino, Sgt. Garguilo and additional officers continue herding the group, including § 87(2)(b) away from the direction of the pool and off the overpass. At the 18:25 time stamp, § 87(2)(b) throws a soda at the officers' feet; the officers do not react to this. The officers continue herding the group and telling them to "back up" and "leave" multiple times, which the group does not comply with. Instead, they walk slowly in the correct direction while frequently stopping and arguing with officers. At the 19:36 time stamp, § 87(2)(b) can be seen attempting to walk past officers towards the direction of the pool. PO Orlando puts his arm in front of § 87(2)(b) to prevent her from walking past the officers, but she continues to attempt to pass. At the 19:39 time stamp, Sgt. Garguilo points to § 87(2)(b) and says, "She's got to go. She's going back to the precinct now." Sgt. Garguilo, PO Serrano, and PO Bocchino each grab § 87(2)(b) by her left and right arms and move her toward a fence, pushing the front of her body against the fence and placing her into handcuffs. During this time, § 87(2)(b) says multiple

times, “I’m trying to get my sister.” Alternate angles of § 87(2)(b) being arrested can be seen at the 18:41 time stamp in PO Graffagnino’s BWC video (Board Review 04), the 14:19 time stamp in PO Casale’s BWC video (Board Review 05), the 14:17 time stamp in PO Orlando’s BWC video (Board Review 06), and the 3:03 time stamp in Sgt. Garguilo’s BWC video (Board Review 07). All angles consistently show a minimal use of force as PO Serrano, PO Bocchino, and Sgt. Garguilo grab § 87(2)(b)s arms and place her against the fence in order to handcuff her.

NYPD Patrol Guide 221-01 and 221-02 details officer procedure involving the use of force, stating that only the reasonable force necessary to gain control or custody of a subject will be used. In all circumstances, any application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. The Patrol Guide uses an 11-point factor list to determine the use of force: a) the nature and severity of the crime/circumstances, b) actions taken by the subject, c) duration of the action, d) immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e) whether the subject is actively resisting custody, f) whether the subject is attempting to evade arrest by flight, g) number of subjects in comparison to the number of MOS, h) size, age, and condition of the subject in comparison to MOS, i) subject’s violent history, if known, j) presence of hostile crowd or agitators, and k) subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence (Board Review 08 and 09).

§ 87(2)(b) stated that PO Serrano, PO Bocchino, and Sgt. Garguilo pushed her against a fence, which is corroborated by the BWC video. The BWC video also shows multiple verbal and physical attempts from the officers to get § 87(2)(b) and her friends to leave the location, which § 87(2)(b) also corroborated during her statement. The group continually fails to comply, with § 87(2)(b) specifically attempting to walk past Sgt. Garguilo twice despite his directives for her to leave. On the first attempt, Sgt. Garguilo directs § 87(2)(b) not to pass and continues herding her away from the pool. The group continues acting disorderly, even throwing a soda at officers. Approximately four minutes later, § 87(2)(b) attempts a second time to walk past officers at which point Sgt. Garguilo directs that she be arrested. To effect the arrest, Sgt. Garguilo, PO Serrano, and PO Bocchino grab § 87(2)(b)s arms and place her against the fence behind her. § 87(2)(b)

§ 87(2)(b)

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Therefore, it is recommended that **Allegations A, B, and C** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 11).

- PO Katelyn Serrano has been a member of service for one year and this is the first CCRB complaint to which she has been a subject.
- PO Nicholas Bocchino has been a member of service for two years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated as all cases are still under investigation and are currently open. § 87(2)(g)
- Sgt. Thomas Garguilo has been a member of service for 13 years and has been a subject in two CCRB complaints and four allegations, of which two were substantiated:
 - #202101477 involved a substantiated allegation of Abuse: Entry of Premises and a substantiated allegation of Abuse: Threat to damage/seize property against Sgt. Garguilo. The Board recommended Command Discipline – B and the NYPD imposed Formalized Training. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 30, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad: 7

Investigator:	Cloey Romans Signature	Inv. Cloey Romans Print Title & Name	September 1, 2023 Date
Squad Leader:	Vanessa Rosen Signature	Manager Vanessa Rosen Print Title & Name	September 5, 2023 Date
Reviewer:	Signature	Print Title & Name	Date